Master Services Agreement

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of January 15, 2026 ("Effective Date"), by and between Apex Global Solutions LLC, with its principal office at 500 Enterprise Way, Suite 400, Austin, Texas ("Service Provider"), and Nova Retail Enterprises Inc. ("Client").

SECTION 1. SCOPE OF SERVICES

Service Provider agrees to provide cloud software infrastructure architecture, data engineering, and technical advisory services as described in Statement of Work #1 attached hereto. Service Provider shall perform all services with reasonable skill and diligence in accordance with prevailing industry customs.

SECTION 2. PAYMENT AND INVOICING

2.1 Fees. Client shall pay Service Provider the monthly recurring fee of $12,500.00 USD for infrastructure monitoring and 40 engineering hours per month.

2.2 Payment Schedule. Invoices shall be rendered on the first day of each calendar month. Client must remit full payment within fifteen (15) business days (Net 15) of receipt of invoice.

2.3 Delinquency Penalties. Overdue amounts shall accrue interest at the punitive rate of 2.5% per month or the maximum rate permissible by law, whichever is higher, plus a mandatory $500 administrative penalty fee per delinquent billing cycle.

SECTION 3. TERM AND AUTOMATIC RENEWAL

3.1 Initial Term. This Agreement shall commence on the Effective Date and continue for an initial term of twelve (12) months.

3.2 Evergreen Auto-Renewal. UPON EXPIRATION OF THE INITIAL TERM, THIS AGREEMENT SHALL AUTOMATICALLY RENEW FOR SUCCESSIVE TWELVE (12) MONTH PERIODS UNDER IDENTICAL COMMERCIAL TERMS, UNLESS EITHER PARTY DELIVERS WRITTEN NOTICE OF NON-RENEWAL TO THE OTHER PARTY AT LEAST NINETY (90) DAYS PRIOR TO THE EXPIRATION OF THE THEN-CURRENT TERM.

SECTION 4. TERMINATION FOR CONVENIENCE AND DEFAULT

4.1 Unilateral Termination for Convenience. Service Provider may terminate this Agreement at any time, with or without cause, for its sole convenience upon delivering fourteen (14) days prior written notice to Client.

4.2 Client Termination Rights. Client may only terminate this Agreement upon ninety (90) days prior written notice, and solely upon demonstrating a material uncured default by Service Provider that remains unremedied after a sixty (60) day formal cure period.

SECTION 5. CONFIDENTIALITY AND PROPRIETARY INFORMATION

Each party agrees to hold all Confidential Information of the disclosing party in strict confidence using the same degree of care it uses for its own sensitive data, but not less than reasonable care. Receiving Party shall not disclose proprietary technical drawings, customer lists, or financial data to any third party. The obligations under this Section shall survive termination of this Agreement in perpetuity.

SECTION 6. INTELLECTUAL PROPERTY RIGHTS

Client shall own all rights, title, and interest in customized client-facing deliverables specifically created under this Agreement. Service Provider retains exclusive ownership of all pre-existing tools, algorithms, underlying scripts, libraries, and proprietary platforms used to deliver the services.

SECTION 7. UNLIMITED LIABILITY AND DISCLAIMER

7.1 UNLIMITED CLIENT LIABILITY. NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED IN THIS AGREEMENT OR ANY STATEMENT OF WORK, CLIENT'S LIABILITY FOR ANY CLAIMS, LOSSES, OR DAMAGES ARISING O

UT OF OR RELATING TO THIS AGREEMENT SHALL BE WITHOUT LIMITATION AND NO CAP ON LIABILITY SHALL A PPLY TO CLIENT.
7.2 PROVIDER CAP. SERVICE PROVIDER'S TOTAL AGGREGATE LIABILITY ARISING UNDER THIS AGREEMENT SHA LL NOT EXCEED THE TOTAL FEES ACTUALLY RECEIVED BY SERVICE PROVIDER IN THE ONE (1) MONTH IMMEDIA TELY PRECEDING THE CLAIM.

SECTION 8. OVERLY BROAD INDEMNIFICATION

Client shall defend, indemnify, and hold harmless Service Provider, its affiliates, directors, officers, and employees against any and all third-party claims, lawsuits, liabilities, losses, costs, and attorney's fees arising out of or related to this Agreement or the use of deliverabl es, regardless of whether caused by Service Provider's own negligence, errors, or omissions.

SECTION 9. NON-SOLICITATION AND NON-COMPETE

During the Term of this Agreement and for a period of thirty-six (36) months following terminat ion, Client shall not directly or indirectly solicit, recruit, or hire any engineer, contractor , or executive employed by Service Provider without prior written consent and payment of a $100 ,000 release penalty fee.

SECTION 10. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be construed and governed in accordance with the laws of the State of Dela ware, without giving effect to conflicts of laws principles. Any dispute or claim arising out o f this Agreement shall be resolved through final, binding arbitration administered by the Ameri can Arbitration Association (AAA) in Dover, Delaware.

SECTION 11. FORCE MAJEURE

Neither party shall be liable for delays or non-performance caused by acts of God, strikes, arm ed conflicts, utility blackouts, or government decrees beyond reasonable control, provided writ ten notice is provided within five (5) business days.